

of the subject shall be strictly observed, and guarded with the utmost vigilance and care; and that no man's freedom shall be taken from him, without the judgment of his peers, aided by the consideration of the court on the law, as it affects the evidence against him.

This in the estimation of the constitution and of every man who is capable of feeling a spark of the sublime and enthusiastic admiration of liberty, which animated the breasts of those who reared the glorious fabric of the British constitution, is paramount; like *Aaron's rod*, it swallows up all others.—It is the first, and grandest, and most valuable principle of public policy, that that liberty, which the law ensures to every subject, shall not be infringed;—it is the right of every subject in this land;—by the enjoyment of the *British* constitution, he becomes entitled to it, at the moment of his birth; and it is not to be invaded or wrested from him with impunity, by a warrant illegally issued by any person, or from any quarter; nor explained away, by a new fangled maxim, founded upon a mistaken notion of policy, and strained beyond its meaning, the absurdity of which cannot appear more plainly, than when it is contrasted or set in competition with the other.

But it has been said, that the Plaintiff has a remedy in parliament; and that personal security is thereby sufficiently protected. Let this remedy be examined, and I fear, that if Mr. *Taaffe* be allowed no other, it will be found that he has no remedy at all. Parliament can afford no remedy or compensation for individual and private injuries;—they cannot be expected to attend to;—they could not if they would, try every private case; and if they could try, they could award no compensation. Parliament may interfere, for the purpose of bringing great public criminals to justice, such as I am happy to say, it would be necessary to go to remote times to find disgracing the Bench; but I fear this remedy would be found of little avail in the case of a private individual; nay, I have the authority of *Gregory*, *Eyre*, and *Dollen*, to say, that to institute such a proceeding before parliament,—to withdraw the investigation from the proper